

26STCV11422 26STCV11422

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-15

Motion: DEFENDANTS ALLA KUTZ AND IGOR KUTZ'S SPECIAL MOTION TO STRIKE PLAINTIFF'S COMPLAINT
PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

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Case Number: 26STCV11422 Hearing Date: September 15, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

MIKHAIL SIRETSKIY, an
individual,

Plaintiff,

vs.

ALLA KUTZ, an individual; IGOR
KUTZ, an individual and DOES 1 through 20, inclusive,

Defendants.

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CASE NO: 26STCV11422

[TENTATIVE] ORDER RE: DEFENDANTS

ALLA KUTZ AND IGOR KUTZ'S SPECIAL MOTION TO STRIKE PLAINTIFF'S COMPLAINT

PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

Dept. 731

September 15, 2026

8:30 a.m.

Matter No. 11

Moving Party: Defendants, Alla Kutz and Igor Kutz

Opposing Party: Plaintiff, Mikhail Siretskiy

Notice: OK

Background Facts

Pleadings

This action arises from a dispute concerning the characterization of a real-property transaction and the parties' respective rights in connection with a residential construction and refinancing project.

Plaintiff Mikhail Siretskiy ("Plaintiff") sues Defendants Alla Kutz and Igor Kutz ("Defendants") pursuant to an April 9, 2026, Verified Complaint alleging claims for Breach of Written Contract, Breach of the Implied Covenant of Good Faith and Fair Dealing, Intentional Interference with Prospective Economic Advantage, Declaratory Relief, Reformation, Rescission, Cancellation of Instrument, and Fraud.

The Complaint's claims chiefly arise from the following allegations, among others. Plaintiff alleges he purchased 5325 Cangas Drive as his future residence and later received approximately \$349,000 from Defendants under what he understood to be a financing arrangement repayable upon refinance or sale of the property. Defendants, who were financially sophisticated and represented by attorneys, structured the transaction documents to appear as though Defendants had acquired a 36% ownership interest. Plaintiff asserts he reasonably believed the documents reflected repayment terms rather than a conveyance of ownership. He claims Defendants contributed no mortgage payments or construction costs and later used the documents to assert ownership rights.

Plaintiff further alleges Defendants initiated litigation in April 2022 claiming ownership, which clouded title and prevented him from refinancing. He contends the inability to refinance led to foreclosure, causing him to lose the property, equity, and invested construction funds. Plaintiff also alleges Defendants previously breached a listing agreement involving another property, depriving him of earned commission income needed to fund the Cangas project. He asserts Defendants' misrepresentations, concealment, and interference were intentional and designed to convert a financing arrangement into a multi-million-dollar ownership claim.

b. Motion

Before the Court

Now before the Court is Defendants' opposed anti-SLAPP motion challenging the causes of action alleged in the Complaint.

Anti-SLAPP Motion

a. Legal Standard

Anti-SLAPP analysis under Code of Civil Procedure section 425.16 proceeds in two familiar steps. In the first step, the defendant or moving party must make "a threshold showing that the challenged cause of action is one 'arising from' protected activity." (Barry v. State Bar of California (2017) 2 Cal.5th 318, 321, quotations omitted (Barry).) In this context, the term "protected activity" refers to speech or petitioning activities. (Barry, 2 Cal.5th at p. 321.) A claim arises from protected activity when that activity underlies or forms the basis for the claim; otherwise stated, "the defendant's act underlying the plaintiff's cause of action [must] itself [be] ... an act in furtherance of the right of petition or free speech." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1063, quotations omitted (Park).) "[T]he focus is on determining what 'the defendant's activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.'" (Ibid.) In teasing out whether protected conduct exists, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. (Ibid.)

If the court finds the defendant or moving party succeeds at the first step, then the burden shifts to the plaintiff to "demonstrate[] a probability of prevailing on the claim." (Ibid. [quotations omitted].) At the second step, courts "evaluate the defendants' evidence only to determine if it defeats that submitted by the plaintiff as a matter of law." [Citation.] "[I]n order to establish the requisite probability of prevailing [citation], the plaintiff need only have "'stated and substantiated a legally sufficient claim.'" [Citation.] "Put another way, the plaintiff 'must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.'" [Citation.]

... That burden [is] not particularly high.” (Area 51 Productions, Inc. v. City of Alameda (2018) 20 Cal.App.5th 581, 602 (Area 51 Productions, Inc.).) “Claims with the requisite minimal merit may proceed.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 94 (Navallier).) If the cause of action satisfies both prongs of the anti-SLAPP statute, then it is subject to being struck. (Barry, supra, 2 Cal.5th at p. 321.)

As stated by our State’s highest Court: “This is a ‘summary-judgment-like procedure at an early stage of the litigation.’” (Varian, supra, 35 Cal.4th at p. 192.)

Discussion

i. First

Prong – Protected Activity

Defendants’ motion challenges various sets of acts as protected petitioning activity that should be stricken from the Complaint pursuant to Code of Civil Procedure section 425.16, which the Court summarizes as follows:

(1) Kutz’s filing of the civil lawsuit Kutz v. Siretskiy, LASC Case No. 22STCV12323, including the April 12, 2022, Complaint and the subsequent First Amended Complaint, which Plaintiff expressly alleges caused a cloud on title, interfered with refinancing, and gave rise to all asserted damages (Complaint, ¶¶ 21, 26, 37, 44);

(2) Kutz’s prosecution and maintenance of the 22STCV12323 litigation, including continued assertions of ownership in the judicial proceeding, which Plaintiff alleges constituted wrongful conduct forming the basis of his breach, interference, declaratory-relief, reformation, rescission, cancellation, and fraud claims (Complaint, ¶¶ 31, 95, 107, 118, 129, 140, 152, 165, 171, 179, 196); and

(3) Kutz’s litigation-related communications made in connection with the 22STCV12323 litigation, including statements and written filings asserting ownership rights, which Plaintiff contends clouded title, blocked refinancing, and prevented performance under the parties’ agreement (Complaint, ¶¶ 21, 25, 28, 32, 42, 75-77, 179-180).

After review, and on grounds not raised by the parties, the Court determines Defendants fail to carry their burden to show petitioning activity.

Specifically, the Court determines the alleged conduct does not arise from petitioning activity and is otherwise mere background for the allegations in the Complaint. Instead, the Court determines that the actionable conduct supporting the Complaint's claims serves as mere evidence of wrongful conduct, as reasoned in *Department of Fair Employment & Housing v. 1105 Alta Loma Road Apartments, LLC* (2007) 154 Cal.App.4th 1273 (DFEH). Moreover, briefly, the requested relief is not altogether clear as to the exact language challenged in the Complaint, as the notice of motion does not clearly state which claims are at issue, a deficiency shared by the points and authorities, thus failing to comply with *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010 (*Bonni*) insofar as challenged claims within pleaded counts must be identified to permit the Court to proceed with an anti-SLAPP analysis.

Turning to DFEH, there, the complaint consisted primarily of the details of numerous communications between a tenant or the tenant's repraying fortives and the landlord regarding assertions of disability by the tenant, with the concluding paragraph of factual background alleging that because the landlord did not receive documentation it requested regarding the tenant's disability, it instituted three unlawful detainer actions, resulting in the tenant's eviction, with the tenant thereafter filing suit for disability discrimination and praying money damages and equitable relief related thereto. (*Id.* at p. 1284.) The landlord filed an anti-SLAPP motion, which was denied under pre-*Bonni* gravamen framing on the basis that the causes of action alleged in the pleadings did not arise from the landlord's protected activity, but rather, arose from disability discrimination. (*Id.* at p. 1281.) The court of appeal affirmed, reasoning that "the communications and the actual eviction itself were not the acts attacked in DFEH's complaint" and that "[i]nstead, the allegations of wrongdoing in DFEH's complaint arose from [the landlord's alleged acts of failing to accommodate [the tenant's] disability[.]]" where "[t]he letters, email[.], and filing of unlawful detainer actions constituted DFEH's evidence of Alta Loma's alleged disability discrimination." (*Id.* at pp. 1284-1285.)

Similarly, in *Copenbarger v.*

Morris Cerullo World Evangelism (2013) 215 Cal.App.4th 1237, 1248-1249 (Copenbarger), which cited DFEH, the court of appeal held that while allegations involving the service of a three-day notice to quit generally arise from protected activity, the challenged allegations there instead involved allegations of the wrongful inducement of a three-day notice to quit, which lay outside of anti-SLAPP protections.

Here, the Court determines that as with DFEH and similar to Copenbarger, and as detailed in the Factual Background above, the allegations of protected activity in the Complaint form a pleaded chain of allegedly unlawful and fraudulent conduct by Defendants to defraud Plaintiff of his interest in the subject property, starting when the parties consummated the agreement transferring 36% of the property to Defendants without Plaintiff's knowledge, with Defendants benefitting from that fraud by asserting ownership rights over property without just cause and impeding Plaintiff's ability to refinance the property, subsequently leading to foreclosure, which lies closer to the wrongful inducement and evidence of unlawful conduct supporting the stated claims discussed in DFEH and Copenbarger than a suit purely based on protected activity without the context of fraud.

Accordingly, Defendants fail to meet their burden on anti-SLAPP.

ii. Second

Prong – Probability of Prevailing on the Merits

Defendants having failed to meet their burden on the first prong, the Court does not proceed with further discussion of the second prong.

c. Conclusion

Defendants Alla Kutz and Igor Kutz's anti-SLAPP motion is DENIED.

Defendants Alla Kutz and Igor Kutz is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 15, 2026 _____

MARK C. KIM

Judge of the
Superior Court